

WOODBURY COMMUNITY ASSOCIATION

VIOLATION ENFORCEMENT POLICY

Enforcement of the Association's Governing Documents, including the CC&Rs and the Association's Rules and Regulations, is an important function of the Board of Directors. The Board takes this obligation very seriously as the enforcement of the Governing Documents protects the community's property values and ensures that the community remains an attractive and desirable place to live. As such, violations of the Governing Documents are addressed by the Board as quickly as reasonably possible, and Owners who are in violation may find themselves facing a hearing, having to pay fines, or even facing litigation.

The following policy sets forth the process by which the Board will consider action when an Owner is in violation of the Governing Documents. While the Board would prefer to resolve matters informally, there may be times when more formal proceedings or even litigation is necessary to obtain an Owner's compliance and protect the other Members of the Association who voluntarily comply. Should litigation be required the Association will seek to recover all legal fees it incurs in pursuing the matter. As may be expected those fees are often substantial, and the Board would much prefer that Owners voluntarily comply with the Association's Governing Documents.

1. All violations which are reported by individual residents must meet the following criteria:
 - a. Violation report must be in writing.
 - b. Party making complaint (no anonymous complaints) must sign violation report.
 - c. Violation report must identify individual in alleged violation either by name or address. Physical descriptions are not sufficient for identification of individuals. Automobile descriptions and or license plate numbers are also not sufficient for identification of individual in violation.

The Board may, but need not necessarily, send a courtesy notice to the Owner advising the nature of the violation and a time limit to cure the violation. If the Board elects to send a courtesy notice to the Owner, failure to comply with the request to cure the violation or respond to the Board of Directors may result in a Notice of Hearing.

2. The Board may schedule a hearing and forward a Notice of Hearing to Owners it believes to be in violation. Any Notice of Hearing requesting appearance on a specified date to be heard by the Board of Directors, shall be given at least ten (10) days prior to the hearing.
3. An Owner shall have the opportunity to cure the violation prior to the hearing. If the Owner cures the violation prior to the hearing or if curing the violation will take longer than the time between the notice and the hearing, but the Owner provides a financial commitment to cure the violation, then the Board may not impose any discipline on such Owner.
4. If the violation is confirmed at the hearing, then the Board of Directors may take any one or more of the following actions:
 - a. Levy a Compliance Assessment or monetary penalty against the violating Owner in the amount of \$100.00 per violation. Exception: The Board may impose a monetary penalty

greater than \$100 per violation if the violation may result in an adverse health or safety impact on the Association Property or an Owner's property. Before imposing such a penalty, the Board shall make a written finding specifying the adverse health or safety impact of the violation in an open Board meeting.

- b. Suspend for up to thirty (30) days or condition the Owner's right to use any recreational facilities the Association owns, operates or maintains commencing on a date in the future selected by the Board.
- c. Submit the matter to legal counsel for further action, including, but not limited to, commencement of the alternative dispute resolution process or filing of a civil lawsuit.

NOTE: The Board may determine to use alternative dispute resolution or cause correction of the violation to affect a cure. Owner shall be responsible for legal fees and/or reimbursement of costs incurred by the Association.

NOTE: Should a violation occur which imposes a financial obligation on the Association; the Owner responsible for said violation shall reimburse, by way of a Damage Reimbursement Assessment, the Association for this financial obligation. If, for example, an Owner damages a fence, tree or any other Association Property, repair and replacement costs will be charged to that Owner.

- 5. Hearing: The hearing shall be held before the Board of Directors in Executive Session. Additionally, the following protocol shall be observed:
 - a. At such hearing the Owner so charged shall have the right to hear the charges and evaluate evidence concerning the alleged violation.
 - b. At the hearing, the Owner shall have the right to present oral and/or written evidence concerning the alleged violation.
 - c. Hearings will not be rescheduled at the convenience of the Member accused of the violation. Members who choose not to attend the hearing may submit written evidence for Board consideration.
- 6. Results: The results of the hearing, including any action to be taken, shall be delivered to the Owner within fourteen (14) days following the date of the hearing.